



CHAPTER cxxi.

An Act to authorise the Mersey Docks and Harbour Board to construct additional dock works on the Liverpool side of the River Mersey to amend in certain respects the Acts relating to that Board and for other purposes. A.D. 1903.
[21st July 1903.]

WHEREAS by the Mersey Docks and Harbour Act 1857 (being an Act for consolidating the docks at Liverpool and Birkenhead into one estate and for vesting the control and management of them in one public trust and for other purposes) (in this Act called "the Act of 1857") the Mersey Docks and Harbour Board (in this Act called "the Board") were incorporated for the purposes therein mentioned and further powers have from time to time been conferred on the Board by various subsequent Acts:

And whereas by the Mersey Dock Act 1891 the Mersey Docks (New Works) Act 1898 (in this Act called "the Act of 1898") and the Mersey Dock (Canada Dock Works &c.) Act 1901 in order to meet the requirements of the trade of the port of Liverpool the Board were authorised to alter deepen and improve some of their existing works and to construct other works on the Liverpool side of the River Mersey and such works included a new graving dock partly on the site of the Western Brunswick Graving Dock and another graving dock on the east side of the Sandon Half-Tide Dock which were authorised by the Act of 1898:

And whereas in order to meet the constantly increasing requirements of the trade of the port it is expedient that further accommodation should be provided in connexion with the works authorised to be constructed under the above-mentioned Acts and

A.D. 1903. that the Board be empowered to construct the new dock and the graving docks in this Act described and to abandon and relinquish the construction of the said graving docks authorised by the Act of 1898 :

And whereas for the improvement and development of their dock estate the Board sometime since contracted and agreed to purchase from certain persons (in this Act referred to as "the vendors") the lands specified in the schedule to this Act and it is expedient that such purchase be confirmed and that the Board be enabled to hold the said lands as part of their dock estate :

And whereas it is expedient that the Board be empowered from time to time to purchase and acquire by agreement further lands for the improvement and development of their said dock estate :

And whereas by section 14 of the Mersey Dock (Liverpool Dock Extension) Act 1873 (in this Act called "the Act of 1873") it was provided that the Board might if they should think fit during the period of ten years from the passing of that Act charge differential rates as therein expressed in respect of any of their docks or of any portion of any of their docks or in respect of any particular trade or trades using any such dock or portion of dock and by section 35 of the Mersey Docks and Harbour Board (Overhead Railways) Act 1882 (in this Act called "the Act of 1882") the period during which such differential rates might be charged was extended to thirty years from the passing of the Act of 1873 and it is expedient that such period be further extended as by this Act provided :

And whereas it is expedient that the Board be authorised to raise further moneys for the purposes of this Act and for other purposes of their undertaking and that the further powers hereinafter contained be conferred upon the Board :

And whereas plans and sections of the works by this Act authorised showing the lines or situation and levels thereof and the lands on which the same are intended to be made and a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the County Palatine of Lancaster and are in this Act referred to as "the deposited plans sections and book of reference" respectively :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

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with the advice and consent of the Lords (Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

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1. This Act may be cited as the Mersey Docks and Harbour Board Act 1903. Short title.

2. The Lands Clauses Acts (except the sections of the Lands Clauses Consolidation Act 1845 numbered 127 to 132) and so much of the Mersey Dock Acts Consolidation Act 1858 (in this Act called "the Act of 1858") as relates to the meanings to be assigned to certain words and expressions (being section 3 of that Act) except so far as those meanings may be inconsistent with this Act are respectively incorporated with and form part of this Act and in construing the Lands Clauses Acts the Board shall be deemed the promoters of the undertaking. Incorporation of Acts.

3. Subject to the provisions of this Act the Board may make and maintain in the lines or situation and according to the levels shown on the deposited plans and sections the works herein-after described and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for that purpose The works herein-before referred to and authorised by this Act are situate in the County Palatine of Lancaster and are— Power to construct works.

(A) A graving dock on the south-eastern side of the Herculaneum Dock of the Board :

(B) A graving dock on the site of the South Carrier's Dock of the Board :

(C) A dock (the Canada Branch Dock No. 3) commencing on the east side of Canada Dock and extending thence eastward for a distance of 340 yards or thereabouts and being 100 yards or thereabouts in width from north to south.

4. The Board shall abandon the construction of—

(1) The new graving dock on the site of the Western Brunswick Graving Dock being Work (N) authorised by the Act of 1898; and

(2) The graving dock on the east side of the Sandon Half-Tide Dock being part of Work (R) authorised by the Act of 1898.

Abandonment of certain works authorised by Act of 1898.

5. In connexion with the works by this Act authorised or any of them the Board may from time to time make and maintain all necessary and proper approaches roads warehouses sheds buildings Power to make subsidiary works.

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yards shipping places wharves custom houses roofs watch houses
staiths jetties stairs landing places stages quays walls fences gates
entrances slips cranes hydraulic and other lifts dolphins buoys
moorings mooring chains sewers drains culverts sluicing apparatus
railways tramways stations pumping arrangements and other works
and conveniences and may dredge and deepen their existing docks
and may take and impound water from the River Mersey.

Lateral and
vertical
deviations.

6. In executing the works by this Act authorised the Board may deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown thereon and vertically from the levels thereof shown on the deposited sections to any extent not exceeding ten feet.

Applying
section 5 of
Act of 1891.

7.—(1) Section 5 (For protection of Corporation of Liverpool) of the Mersey Dock Act 1891 shall extend and apply to and in the case of the works authorised by this Act and to the Board in respect thereof as if that section were expressly enacted in this Act with reference to the works by this Act authorised.

(2) If by reason of the execution of any of the powers of this Act any increased length of the water mains or pipes of the mayor aldermen and citizens of the city of Liverpool (in this section called "the corporation") becomes necessary the same shall be laid down by the corporation at the expense of the Board upon such plan and in such a manner as may be approved of by the corporation.

(3) Whenever by the appropriation or destruction of property by this Act authorised any water mains or pipes laid by the corporation for the supply of such property (except pipes inside such property) are rendered unnecessary the Board shall pay the corporation the cost of laying an equivalent length of water mains or pipes and the cost of the works required for the discontinuance of such water mains or pipes rendered unnecessary as estimated by the water engineer of the corporation and the water mains and pipes so rendered unnecessary shall be the property of the Board.

For pro-
tection of
Liverpool
Overhead
Railway
Company.

8.—(A) Notwithstanding anything shown on the deposited plans nothing in this Act contained shall authorise the Board to enter upon take use or interfere with the property numbered on the deposited plans 25 in the parish or township of Bootle-cum-Linacre and 44 in the parish or township of Kirkdale or any part or parts of such property.

(B) Notwithstanding anything shown on the deposited plans no part of the docks or works (B) and (C) authorised by this Act

shall be so constructed as to bring the coping lines thereof eastward of the positions shown on the said plans as the eastern boundary of such docks or works without the consent in writing of the Liverpool Overhead Railway Company. A.D. 1903.

(c) Nothing contained in this Act shall prejudice or affect the rights of the Liverpool Overhead Railway Company as lessees under the Board of the Liverpool Overhead Railway and such rights shall remain in full force.

9. All works for or in connexion with the graving docks and the dock shown on the deposited plans at the date of the passing of this Act constructed by the Board and the expenditure of money by the Board for or in connexion with the construction of such works are hereby sanctioned and confirmed and such works shall be deemed to have been constructed under the powers of this Act. Sanctioning portions of works already constructed.

10. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Board after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the County Palatine of Lancaster for the correction thereof and if it appear to such justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the said clerk of the peace and a duplicate thereof shall also be deposited with the town clerk of the city or borough in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate. Correction of errors &c. in deposited plans and book of reference.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such Persons under disability may grant easements &c.

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lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Restriction
on taking
houses of
labouring
class.

12. The Board shall not under the powers of this Act purchase or acquire in any city borough or other urban district or elsewhere than in a city borough or urban district in any parish ten or more houses situate on the lands shown on the deposited plans or on any of the lands specified in the schedule to this Act which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses so situate which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied nor shall the Board except with such consent purchase or acquire in any such city borough urban district or parish ten or more houses situate on any other lands which may be acquired by the Board under the powers of this Act and which houses at any time within the two years prior to the respective date of purchase or acquisition by the Board may have been so occupied.

If the Board acquire any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Period for
completion
of works.

13. If the works by this Act authorised and shown on the deposited plans and sections are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Board for making and

completing the same or otherwise in relation thereto shall cease A.D. 1903.
except as to so much thereof as is then completed.

14. For the purpose of rates and charges and for all other purposes the works by this Act authorised and each and every of them shall be deemed to be docks within the meaning of the Act of 1858 and any Act or Acts amending the same. Works to be deemed docks within meaning of Act of 1858.

15.—(1) The works by this Act authorised shall be deemed to be works authorised to be erected established and maintained by the Board within the meaning of section 284 of the Act of 1858 and shall also be deemed to be works for the improvement of the Mersey Dock Estate on the Liverpool side of the River Mersey within the meaning of section 5 of the Mersey Docks (Various Powers) Act 1867 and the construction and maintenance of the works by this Act authorised shall be deemed to be purposes of the Act of 1898 within the meaning of sections 16 and 17 of that Act and of section 20 of the Mersey Docks and Harbour Board Act 1901. Works to be deemed authorised works within meaning of Acts of 1858 and 1867.

(2) The provisions of section 14 of the Act of 1898 and of any byelaws made by the Board thereunder (so far as the same are applicable) shall extend and apply to the works by this Act authorised and to the Board in relation thereto and such works shall for the purposes of that section and of any such bye-laws (so far as the same are applicable) be deemed to be works authorised by the Act of 1898.

16. The sale to and purchase by the Board of the lands specified in the schedule to this Act are hereby sanctioned and made binding on the parties and may be completed in accordance with the terms and conditions agreed on and all the estate and interest of the respective vendors and each of them in the said lands shall immediately on the payment by the Board of the agreed purchase money and the execution accordingly of a deed of conveyance of the said lands be vested in the Board and held as part of the Mersey Dock Estate. Confirming purchase of lands.

17. In addition to any other lands which by this Act or any other Act the Board are authorised to purchase and acquire they may subject to the provisions of section 13 subsection (2) of the Act of 1857 purchase and acquire by agreement for the improvement and development of the Mersey Dock Estate and may hold as part of that estate any lands not exceeding in the whole five hundred acres. Nothing in this Act shall exempt the Board from Power to acquire lands by agreement.

A.D. 1903. any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased or acquired under the powers of this section.

As to differential rates.

18. The period during which the Board may charge differential rates as provided by section 14 of the Act of 1873 as amended by section 35 of the Act of 1882 is hereby extended until the expiration of twenty years from the passing of this Act.

Extending section 62 of Act of 1858.

19. Section 62 of the Act of 1858 and the penalty thereby imposed shall extend and apply to the giving of false information as to the beam or length of a vessel as well as to the giving of false information of the draught of water of such vessel.

As to spoiled goods.

20. If any goods shall be deposited or allowed to remain upon the quay of any dock or any pier or other work or property of the Board or in any warehouse of the Board in a decomposed or offensive condition the Board may remove and dispose of or destroy the same as they think fit and the expenses of so doing shall be repaid to the Board by the owner of such goods and be recoverable by the Board as penalties are recoverable under the provisions of Part XV. of the Act of 1858 as amended by subsequent Acts.

Further borrowing powers.

21. Subject to the provisions of this Act the Board may from time to time for the purposes of this Act and for enlarging and extending their existing warehouses and sheds and other accommodation in connexion with the works by this Act and by the Act of 1898 respectively authorised borrow at interest on the security of the rates for the time being belonging to them (exclusive of any sum or sums of money required for the completion of the Birkenhead Docks and works and for the purposes specially provided for by the Act of 1857) any further sum or sums not exceeding in the whole (A) five hundred thousand pounds and (B) the amounts from time to time required for the purchase of any lands which the Board may be by or under the powers of this Act authorised to purchase or hold.

Application of moneys borrowed under this Act.

22. All moneys borrowed by the Board under the authority of this Act shall be applied by them for purposes to which capital is properly applicable and not otherwise.

Saving rights of Duchy of Lancaster.

23. Nothing contained in this Act shall extend or operate to authorise the Board to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights

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of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said Duchy first had and obtained (which consent the said Chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His Heirs or Successors in right of His said Duchy. A.D. 1903.
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24. The Board out of any moneys for the time being in their hands shall pay and discharge all the costs charges and expenses of and incident to the applying for obtaining and passing of this Act. Expenses
of Act.

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The SCHEDULE referred to in the foregoing Act.

(1) All that land situate in Waterloo-with-Seaforth in the county of Lancaster admeasuring 187,474 square yards or thereabouts bounded on the north by land of the Waterloo-with-Seaforth Urban District Council on the east in part by Crosby Road South and in part by Waterloo Road on the south in part by land of James Green and in part by Seafield Convent and on the west by the strand and foreshore of the River Mersey and all the rights of the vendors in and over the strand and foreshore of the River Mersey co-extensive with the frontage of the said land to the River Mersey.

(2) All that land situate in Waterloo-with-Seaforth in the county of Lancaster admeasuring 90,160 square yards or thereabouts bounded on the north by land of Thomas W. Cookson Esquire on the east by Crosby Road South on the south by a roadway constructed by the Liverpool Overhead Railway Company and on the west in part by the strand and foreshore of the River Mersey and in part by the slipway leading on to the said strand and foreshore and all the rights of the vendors in and over the strand and foreshore of the River Mersey co-extensive with the frontage of the said land to the River Mersey.

(3) All that land and premises situate in the city of Liverpool adjoining the Brunswick Dock admeasuring 17,078 square yards or thereabouts bounded on the north south east and west sides thereof by the Mersey Dock Estate belonging to the Board together with the vendors' rights and privileges appertaining to such property and their rights and privileges in on or over that portion of the Brunswick River Craft Dock and Quay surrounding same lately occupied by them.

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